

CITY COUNCIL MINUTES

April 19, 2010

The Cadillac City Council met in a scheduled regular meeting on Monday, April 19, 2010, at 7:00 p.m. in the Council Chambers of the Municipal Complex, 200 N. Lake Street, Cadillac, Michigan.

COUNCIL PRESENT: Mellema, Schippers, Spoelman, Stevens,
Mayor Barnett

COUNCIL ABSENT: None

Staff Present: Peccia, Homier, Roberts, Dietlin, Adams, Johnson, Benson

Mayor Barnett called the regular Cadillac City Council meeting to order at 7:03 p.m.

APPROVAL OF AGENDA 2010.085 Agenda approved as amended

City Manager Peccia requested that item VII-G be added for council to set a special meeting. He requested that it be noted that after the public hearing for V-A, council action be postponed until the May 17 council meeting and to table item VII-F after the public hearing.

Motion was made by Spoelman and supported by Schippers to approve the agenda as amended.

Motion unanimously approved.

PUBLIC COMMENTS

Bob Cole, owner of Cole Construction, 112 Beech St., Cadillac, gave Council pamphlets showing companies (mostly local) he would be using if he was awarded the bid for the Diggins Hill Tennis Courts.

Hermann Suhs, owner of Herman's European Café at 214 N. Mitchell St., spoke about the proposed parking special assessment, the new bump-outs along Mitchell Street and the proposed water and sewer increase. Details on comments made are available in the clerk's office.

Dave Dunbar, 6950 Whaley Rd., owner of Dunbar excavating said he would appreciate it if Bob Cole were awarded the bid for the Diggins Hill Tennis Courts.

Steve Fenstermacher, owner of Fenstermacher Asphalt, Big Rapids said that he has a Cadillac office too. He was the low bidder on the Diggins Hill Tennis Courts.

Ray Nelson, 111 Huron Place, member of the Cadillac Honor Guard told council he was not happy with the time change for the Memorial Day parade. Details of comments made are available in the clerk's office.

Bob Eggle, 9051 30 ½ Rd., Cadillac, and owner of the Kris Eggle Memorial Bench spoke regarding his request to move the bench from the Sound Garden to the City Park.

CONSENT AGENDA

2010.086 Consent agenda approved as presented

Motion was made by Schippers and supported by Spoelman to approve the City Council minutes from the regular meeting held April 5, 2010 and the minutes from the work session held April 5, 2010.

Motion unanimously approved.

PROCLAMATIONS

PUBLIC HEARINGS

City Manager Peccia asked council to take no action on the Business Improvement District (BID) Special Assessment to give staff time to review the formula calculation.

Jerry Adams, DDA Director, gave a presentation on the reason for the special assessment and how the rates were calculated.

At 7:41 p.m., Mayor Barnett opened a public hearing to hear comments on the BID special assessment. Bill McNitt, owner of the Northwood Building, 101 E. Harris Street said that the downtown is struggling and a different look at the project is needed. John Nelson, owner of John Nelson Photography, 110 N. Mitchell questioned the special assessment formula and said that he only has one parking spot in front of his business. He is concerned because everyone else is raising their rates too and he is under economic stress. Roxanne Dufort, owner of 107 N. Mitchell Street said that she has only been in business for two years and is also struggling to pay the bills. Jerry Adams said the special assessment would only be for one year. The public hearing closed at 7:47 p.m.

Council did not take action on the special assessment request at this time.

At 7:59 p.m., Mayor Barnett opened a public hearing to consider adoption of Ordinance No. 2010-04 which would add Section 8-21 to the Cadillac City Code to transfer responsibility for the administration and enforcement of the state construction code to Wexford County. There was no public comment. The public hearing closed at 8:00 p.m.

2010.087 Ordinance No. 2010-04 adopted, transfer enforcement of construction code to Wexford County

Motion was made by Stevens and supported by Spoelman to adopt Ordinance No. 2010-04 which would transfer responsibility for the administration and enforcement of the state construction code to Wexford County.

Motion unanimously approved.

At 8:05 p.m., Mayor Barnett opened a public hearing to consider the adoption of Ordinance No. 2010-05 which would amend Sections 42-201 and 42-202(3) of Chapter 42 of the Cadillac City Code to increase water rates in the City of Cadillac 4.5% and to consider the adoption of Ordinance No. 2010-06 which would amend Section 42-374 of Chapter 42 of the City Code to increase sewer rates 4.5% in the City of Cadillac. Jeff Dietlin, Director of Utilities, gave a presentation on water and sewer rate increase determinations. He said that no general fund dollars are applied to water, sewer, sprinklers, flat rate services or fire protection lines.

2010.088 Ordinance No. 2010-05 adopted, water rates

Motion was made by Schippers and supported by Mellema to adopt Ordinance No. 2010-05 to increase water rates 4.5% beginning July 1, 2010.

Motion unanimously approved.

2010.089 Ordinance No. 2010-06 adopted, sewer rates

Motion was made by Schippers and supported by Mellema to adopt Ordinance No. 2010-06 to increase sewer rates 4.5% beginning July 1, 2010.

Motion unanimously approved

At 8:39 p.m., Mayor Barnett opened a public hearing to receive comments on the 2010/2011 Annual Budget for the City of Cadillac. Director of Finance, Owen Roberts gave an overview of the budget and funding challenges facing the city. He said changes can be made to the budget until May 17, 2010 when the final budget will be adopted. There were no public comments. The public hearing closed at 8:59 p.m.

COUMMUNICATIONS

Tom Olmsted, member of the Cadillac Housing Commission (CHC), introduced Judy Myers, Executive Director of the Cadillac Housing Commission. Ms. Myers presented a request for changes in their compensation package. She said they will change the health insurance to a Health Reimbursement account plan which will save them \$6,000 to \$18,000 per year. This will allow a 2.5% wage increase for CHC employees.

2010.090 Changes to compensation package for housing commission employees approved

Motion was made by Stevens and supported by Spoelman to approve the changes to the compensation package for housing commission employees.

Motion unanimously approved.

2010.091 Street closure for Jack Pine Pickers concerts approved

Motion was made by Schippers and supported by Mellema to close Lake Street between Harris and Cass Street, from 6:00 p.m. to 9:30 p.m. on June 1 and 15, July 6 and 20 and August 3 and 17, 2010 for old time country music concerts.

Motion unanimously approved.

Ray Nelson, member of the Cadillac Honor Guard, addressed council regarding the time change from 10:00 a.m. to 11:00 a.m. for the Memorial Day parade. He said it is tradition to start the parade at 10:00 a.m. Nelson told council that if the parade begins at 11:00, the Memorial Day ceremony, held at the Veterans Memorial Stadium after the parade, will interfere with the annual track meet held at the stadium after the ceremony.

City Clerk, Christine Benson, said the time change was requested by Captain Matt Wohlfeill of the Cadillac Police Dept. so he would have time to reposition his officers after the annual Stride for Strive 5k run/walk has ended.

Staff will meet with the Amvets, sponsors of the parade, and the color guard to see if a compromise can be made.

2010.092 Parade route for Memorial Day Parade approved

Motion was made by Schippers and supported by Spoelman to approve the route, as requested by Amvets Post 110, for the annual Memorial Day parade to be held May 31, 2010. Motion unanimously approved.

Bob Eggle told council that the Kris Eggle Memorial Bench that was located in the Sound Garden on Chestnut Street had been vandalized. He asked if it could be moved to the City Park near the fountain and in view of the security camera.

2010.093 Request to move memorial bench approved

Motion was made by Spoelman and supported by Stevens to approve the request to move the Kris Eggle Memorial Bench to the City Park. Motion unanimously approved.

Louis Richardson of LJR Enterprises said his request for an off-premise sign advertising his hot dog stand should be allowed under the City Zoning Ordinance because the business supports adults with mental illnesses and it is also of general public interest.

When asked if he has a non-profit 501C-3 status, he replied that he did not. Council suggested that he “piggy-back” with an established non-profit group.

2010.094 Off-premise sign request tabled

Motion was made by Stevens and supported by Mellema to table the request from Louis Richardson to place an off-premise sign on Mitchell Street, to give Mr. Richardson an opportunity to pursue non-profit 501C-3 status.

Ayes: Schippers, Stevens, Mellema, Mayor Barnett

Nays: Spoelman

Motion carried.

CITY MANAGER’S REPORT

City Attorney Mike Homier gave an update regarding docks at road endings. He said he had given a confidential memo to council. He also said it is too early for a formal opinion and that the dock situation will not change this year.

Finance Director Owen Roberts told council that the lease of two copy machines from IKON Office Solutions, Inc. of Traverse City will expire in July. The company proposed a new lease price in accordance with their contract with the State of Michigan through the MiDEAL program. The lease includes a maintenance program that covers all toner, parts, service labor, quality assurance and drums.

2010.095 Lease of copy machines approved

Motion was made by Schippers and supported by Spoelman to award a 48-month lease for two Ricoh copy machines to IKON Office Solutions, Inc. of Traverse City in the amount of \$562.67 per month. Funds are available in the General Fund in the Municipal Complex Department and the Police Department.

Motion unanimously approved.

The City has partnered with Wexford County to provide household hazardous waste

collection. The County has committed to pay 60% of total annual costs with the City being responsible for the remaining 40%

2010.096 Household Hazardous Waste Collection bid awarded

Motion was made by Schippers and supported by Stevens to award the bid for household hazardous waste collection to Environmental Recycling Group of Livonia, Michigan for a \$725 site fee and \$0.83/lb for 2010 and 2011, with an option to extend the agreement for two additional years. Funds are available in the General Fund to cover the City's 40% portion of annual disposal costs.

Motion unanimously approved.

The Diggins Hill committee recommended that the bid for the reconstruction of the Diggins Hill Tennis Courts be awarded either to Fenstermacher Asphalt & Paving of Big Rapids or to Cole, Inc. of Cadillac. By giving Cole the 2% local preference, his bid was still higher than Fenstermacher's bid by \$348. Fenstermacher said he also has a local office in Cadillac. A lengthy discussion was held as to whether the City Code would be violated if the bid was awarded to the local contractor. Details of comments made are on file in the city clerk's office.

2010.097 Bid for tennis courts tabled

Motion was made by Mellema and supported by Stevens to table the awarding of the bid for the Diggins Hill Tennis Courts restoration to give the purchasing committee time to examine the qualifications of both bidders.

Motion unanimously approved.

The City of Cadillac and Wexford County, with the cooperation of the Wexford County Treasurer's office, have collaborated for the collection of delinquent personal property taxes.

2010.098 Agreement with Wexford County for collection of delinquent personal property taxes approved. Miscellaneous file no. 869

Motion was made by Schippers and supported by Mellema to approve the agreement with Wexford County to collect delinquent personal property taxes for the City of Cadillac.

Motion unanimously approved.

2010.099 Budget amendment for 2009/2010 tabled

Motion was made by Spoelman and supported by Schippers to table the 3rd budget amendment for fiscal year 2009/2010 until May 3, 2010 to allow preparation of a budget amendment ordinance.

Motion unanimously approved.

2010.100 Special meeting set

Motion was made by Spoelman and supported by Mellema to set a special meeting for May 3, 2010 at 5:30 p.m. for the purpose of going into closed session to discuss union negotiations.

Motion unanimously approved.

INTRODUCTION OF ORDINANCES AND RESOLUTIONS

ADOPTION OF ORDINANCES AND RESOLUTIONS

Jerry Adams, DDA Director told council that the first step in establishing a Local Historic District for the Cobbs & Mitchell building, located at 100 E. Chapin Street, is the appointment of a Historic District Study Committee.

2010.101 Formation of a Local Historic District Study Committee approved, Resolution No. 1917

Motion was made by Spoelman and supported by Schippers to adopt Resolution No. 1917 to form a Historic District Study Committee and to appoint committee members for the Cobbs & Mitchell Building located at 100 E. Chapin St.

Motion unanimously approved.

2010.102 OPRE public hearing set, Resolution No. 1918

Motion was made by Spoelman and supported by Stevens to set a public hearing for May 3, 2010 to consider an application for an Obsolete Property Rehabilitation Exemption Certificate for property located at 100 E. Chapin St.

Motion unanimously approved.

MINUTES OF BOARDS AND COMMISSIONS

The minutes of the Wexford County Board of Commissioners from meeting the held March 17, 2010 were presented for information only.

PUBLIC APPEARANCES

Loretta Snider, 1107 Sunset Lane, asked that the way-finding signs be removed from Cadillac West because they take business away from the Cadillac West businesses. She also asked that the flower boxes be removed from along Mitchell Street in front of Maple Hill Cemetery. She also told council that she cannot watch the council meetings on TV anymore since Charter switched the local station to channels 97 & 98. She would like the city to talk to the cable company.

GOOD OF THE ORDER

City Manager Peccia commended Finance Director Owen Roberts for being awarded the Government Finance Officers Association Certificate for Excellence in Financial Reporting. This is the 25th year in a row that Cadillac has received the award.

Peccia also reminded council of the informal gathering to be held at McGuire's Resort on Saturday, April 24 at 8:00 a.m. to meet the head of the parent company of Piranha Hose.

ADJOURNMENT

As there was no further business to come before the City Council, the meeting was adjourned at 11:05 p.m.

Respectfully submitted,

William S. Barnett, Mayor

Christine L. Benson, City Clerk

